

25STCV09068 25STCV09068

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 25STCV09068 Hearing Date: August 10, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

10, 2026

CASE NAME: Kewal

S. Basi v. FCA US, LLC, et al.

CASE NO.: 25STCV09068

MOTION

FOR SANCTIONS

MOVING PARTY: Defendant

FCA US, LLC

RESPONDING PARTY(S): Plaintiff Kewal S. Basi

REQUESTED RELIEF:

1. An

order compelling sanctions of \$1,500.00 based on Plaintiff's failure to comply with CCP § 871.26 and an order dismissing the case.

TENTATIVE RULING:

1. Motion

for sanctions is GRANTED, in part.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 27, 2025, Plaintiff Kewal S. Basi (Plaintiff) filed a Song-Beverly Complaint against Defendants FCA US, LLC (FCA) and Selma Chrysler Dodge Jeep Ram (Selma Chrysler) (sometimes collectively Defendants).

According to the Complaint, Plaintiff entered into a warranty contract with Defendants pertaining to a 2022 Ram 2500, Vin No. 3C6UR5GL8NG236281 (the Subject Vehicle) on or around June 8, 2022. Plaintiff alleges that the Subject Vehicle manifested defects that Defendants could not fix despite Defendants' written warranties.

On June 20, 2025, Defendants filed a demurrer and motion to strike. The court SUSTAINED the demurrer to the fifth cause of action without leave to amend, OVERRULED the demurrer to the sixth cause of action, and DENIED the motion to strike.

On March 2, 2026, Defendants filed answers.

On May 15, 2026, Plaintiff filed a motion to compel initial disclosures which the court GRANTED in part.

On June 1, 2026, FCA filed the instant motion for sanctions.

On July 28, 2026, Plaintiff filed an opposition. On August 3, 2026, Defendant filed a Reply.

LEGAL STANDARD:

"Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h)." (Code of Civ. Proc. (CCP) § 871.26(b).)

"Within 120 days after the filing of the answer or other

responsive pleading, all parties have the right to conduct initial depositions" or certain parties. (CCP § 871.26(c).)

The plaintiff is required to produce certain documents within 60 days after the defendant files their responsive pleading. (CCP § 871.26(f).) This includes:

- (1) Sales or lease agreement.
- (2) Copy of current registration.
- (3) Any finance information, account information, including payment history and estimated payoff amount, and any loan modification agreements.
- (4) Any repair orders, including to third-party repair facilities or the location of where information relating to repair orders may be found.
- (5) Documents detailing all underlying claimed incidental damages.
- (6) Information pertaining to the market value of the motor vehicle that is currently in the consumer's possession.
- (7) Any written, pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.

(Ibid.)

The plaintiff must also provide additional information to the defendant under the same timelines. (CCP § 871.26(g).) This includes:

- (1) Mileage of the motor vehicle as of the date of the disclosure described in subdivision (b).
- (2) Primary driver or drivers of the motor vehicle.

(3) If the motor vehicle is primarily used for a business purpose, whether more than five vehicles are registered to the business.

(4) Whether the plaintiff is still in possession of the motor vehicle.

(5) Address where the motor vehicle is located.

(6) Whether the plaintiff is an active or prior member of the Armed Forces.

(7) Whether the motor vehicle has been involved in a collision or accidents reported to insurance prior to the nonconformity, and if so, the approximate date of the collision, the name of the insurance company, and any applicable claim number.

(8) Whether the motor vehicle has any aftermarket modifications done after purchase of the motor vehicle, and if so, a list of each modification.

(9) Dates and mileages for presentations that are not included in the provided repair orders or the location of where the information may be found.

(10) Whether the plaintiff has had any pre-suit communications with the manufacturer, including, but not limited to, any restitution or replacement request.

(11) Any need for an interpreter for purposes of a deposition.

(Ibid.)

“Unless the party failing to comply with this section shows good cause, notwithstanding any other law and in addition to any other sanctions imposed pursuant to this chapter, a court shall impose sanctions” of \$1,500 against the plaintiff’s attorney for failing to provide with the

requirements of subdivision (b) and (c). (CCP § 871.26(j)(1)-(2).) For repeated noncompliance by the plaintiff, the court “shall order the case dismissed without prejudice and the plaintiff’s attorney to be responsible for costs awarded to the manufacturer.” (CCP § 871.26(3).)

ANALYSIS:

FCA contends Plaintiff failed to comply with their mandatory disclosures under CCP §§ 871.26(b), (f), and (g), has not sat for their deposition pursuant to CCP § 871.26(c), and their repeated disregard for their statutory obligations warrants sanctions and dismissal.

Plaintiff argues this motion is unwarranted because they timely served initial disclosures and have agreed with FCA to sit for deposition on August 3, 2026.

Here, sanctions are warranted, in part. First, Plaintiff acknowledged failing to timely provide their initial disclosures. (Declaration of Desiree Washington (Washington Decl.) ¶ 3, Exhibit A.) Counsel admitted that Plaintiff has yet to produce the sales agreement (f)(1) and vehicle registration (f)(2), finance information (f)(3), and collision information (g)(7). Second, FCA cancelled the deposition for failing to receive additional documents. (Id. at ¶¶ 9-11.) The parties thereafter exchanged emails to reschedule the deposition to August 3, 2026. (Id. at ¶¶ 12-13.) Thus while Plaintiff admittedly did not comply with their initial disclosure responsibilities, there is no evidence of willing failure to comply with the statutory deposition requirements warranting sanction of dismissal.

Accordingly, the court GRANTS FCA’s motion for sanctions, in part.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for sanctions is GRANTED, in part. Plaintiff’s counsel is ordered to pay FCA \$1,500 within 15 days of this order.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 10, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court